

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tahreem Khan	Team: Squad #11	CCRB Case #: 202001295	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 02/15/2020 10:30 PM, Saturday, 02/15/2020 11:05 PM, Sunday, 02/16/2020 3:00 AM	Location of Incident: 1535 Broadway in Manhattan & the Midtown South Precinct station house	18 Mo. SOL 4/1/2022	Precinct: 18		
Date/Time CV Reported Tue, 02/18/2020 10:16 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 02/18/2020 10:16 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Sasa Maric	02098	933965	PBMS
2. POM Daniel Cosenza	23835	950237	PBMS
3. An officer			MTS PCT
4. LT Robert Crespo	00000	932499	MTS PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kaisean Branche	04195	953702	PBMS
2. POM James Mchugh	26905	955167	PBMS

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Sasa Maric	Abuse: On February 15, 2020 in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . SGT Sasa Maric	Discourtesy: On February 15, 2020 in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . SGT Sasa Maric	Abuse: On February 15, 2020 in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric searched the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . SGT Sasa Maric	Force: On February 15, 2020 in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric used physical force against § 87(2)(b)	D . Unsubstantiated
E . SGT Sasa Maric	Abuse: On February 15, 2020 in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric damaged § 87(2)(b) property.	E . Unsubstantiated
F . SGT Sasa Maric	Force: On February 15, 2020 in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric used physical force against § 87(2)(b)	F . Unsubstantiated
G . SGT Sasa Maric	Force: On February 15, 2020 in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric used physical force against § 87(2)(b)	G . Unsubstantiated
H . POM Daniel Cosenza	Discourtesy: On February 15, 2020 in front of 1535 Broadway in Manhattan, Police Officer Daniel Cosenza spoke discourteously to § 87(2)(b)	H . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
I . POM Daniel Cosenza	Off. Language: On February 15, 2020 in front of 1535 Broadway in Manhattan, Police Officer Daniel Cosenza made offensive remarks based on perceived mental health to § 87(2)(b)	I . Substantiated
J . SGT Sasa Maric	Abuse: On February 15, 2020 in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric refused to provide his name to § 87(2)(b)	J . Unsubstantiated
K . An officer	Abuse: On February 15, 2020 at the Midtown South Precinct stationhouse, an officer did not process § 87(2)(b) complaint regarding an officer.	K . Officer(s) Unidentified
L . LT Robert Crespo	Abuse: On February 16, 2020 at the Midtown South Precinct stationhouse, Lieutenant Robert Crespo did not process § 87(2)(b) complaint regarding an officer.	L . Unsubstantiated

Case Summary

On February 18, 2020, § 87(2)(b) filed this complaint with CCRB through the call processing system.

On February 15, 2020, at approximately 10:30 p.m., § 87(2)(b) was in his 2017 Chevy Suburban SUV and drove on towards West 45th Street from West 46th Street on 7th Avenue in Manhattan when he saw Sergeant Sasa Maric, of the Midtown South Precinct stand in the middle of the street with his back to § 87(2)(b). § 87(2)(b) stopped his vehicle and flashed his high beams to get his attention. Sgt. Maric came to § 87(2)(b) driver's side door and asked why § 87(2)(b) was flashing his lights. § 87(2)(b) asked if Sgt. Maric was okay and if he could go. Sgt. Maric responded, "It's not your fucking business if I'm okay or not;" when § 87(2)(b) later asked for a supervisor, Sgt. Maric stated, "I'm the fucking supervisor" (**Allegation A: Abuse of Authority – Vehicle stop, unsubstantiated; Allegation B: Discourtesy – Word, unsubstantiated**). § 87(2)(b) told Sgt. Maric that he was going to open his camera to get Sgt. Maric's name. Sgt. Maric then reached into § 87(2)(b) vehicle with both hands, with his left hand he tried to open § 87(2)(b) vehicle door (**Allegation C: Abuse of Authority – Vehicle search, unsubstantiated**) and with his right hand, he slapped the phone from left to right, out of § 87(2)(b) hand, causing the phone to hit § 87(2)(b) windshield and for the phone screen to crack (**Allegation D: Force – Physical Force, unsubstantiated; Allegation E: Abuse of Authority – Property damaged, unsubstantiated**). Sgt. Maric then grabbed § 87(2)(b) from the collar of his shirt and neck skin area twice (**Allegation F: Force – Physical Force, unsubstantiated**). The second time Sgt. Maric grabbed § 87(2)(b) he punched § 87(2)(b) lower left jaw area two or three times with a partially closed fist (**Allegation G: Force – Physical Force, unsubstantiated**). § 87(2)(b) screams attracted three other officers: PO Daniel Cosenza, PO Kaisean Branche, and PO James McHugh, all of Patrol Borough Manhattan South. § 87(2)(b) exited his vehicle and was then handcuffed by PO Cosenza, who spoke discourteously to § 87(2)(b) and made remarks to § 87(2)(b) based on his perceived mental health by stating § 87(2)(b) was acting crazy and sounded insane (**Allegation H: Discourtesy – Word, substantiated; Allegation I: Offensive Language – Other, substantiated**). Later, when § 87(2)(b) requested Sgt. Maric's name, he did not provide it (**Allegation J: Abuse of Authority – Refusal to provide name, unsubstantiated**). § 87(2)(b) was later issued a summons by PO Cosenza, released from his handcuffs, and then he left.

Approximately 15 minutes after the interaction ended, § 87(2)(b) went to the Midtown South Precinct station house on the same day to file a complaint regarding the incident. He spoke to an unidentified officer and expressed that he wanted to file a report about an issue with Sgt. Maric. The unidentified officer told § 87(2)(b) that he can file his complaint online. § 87(2)(b) took down the information and left (**Allegation K: Abuse of Authority: Refusal to process civilian complaint, officer unidentified**). Later, § 87(2)(b) learned that he could make the report in person.

On February 16, 2020, at approximately 3 a.m., § 87(2)(b) returned to the Midtown South Precinct station house where he spoke to Lt. Robert Crespo. § 87(2)(b) saw Sgt. Maric at the station house at this time as well. § 87(2)(b) spoke to Lt. Crespo about wanting to file a report regarding Sgt. Maric in person. Lt. Crespo allegedly told § 87(2)(b) that he could take the complaint but warned § 87(2)(b) that the complaint may take three weeks to process; further, he allegedly stated that § 87(2)(b) may have faster results if he called to make the complaint instead (**Allegation L: Abuse of Authority: Refusal to process civilian complaint, unsubstantiated**). § 87(2)(b) was issued C-Summons § 87(2)(b) by PO Cosenza for disorderly conduct (**Board Review 18**).

The CCRB received four positive results for BWC related to this incident on September 1, 2020, from the following officers: Sgt. Maric, PO Cosenza, PO Branche, and PO McHugh. Further, three TARU disks were received at CCRB on April 23, 2021. Sgt. Maric had partial footage of this incident and had his BWC for less than 90 days at the time.

Findings and Recommendations

Allegation (A) Abuse of Authority: On February 15, 2020, in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric stopped the vehicle in which § 87(2)(b) was an occupant.

TARU footage from Disk 3 of the Southeast Corner of West 46th Street and 7th Avenue Camera-1 (**Board Review 5**) captures the entirety of this incident from a distance without any audio. However, it does not capture all of the allegations raised. The timestamps referred to are those based on the media player. The incident begins at 10:31:00. There are already multiple civilians gathered outside of multiple stores towards the right of § 87(2)(b) vehicle, on the other side of the divider. The civilians appeared to be faced away from § 87(2)(b) vehicle and towards the stores: Levi's, Sephora, and at least two others. Sgt. Maric stands in the middle of the right most turning lane as § 87(2)(b) black Chevy Suburban SUV approaches Sgt. Maric. § 87(2)(b) stops as Sgt. Maric stands in the middle of the lane. There is a lane to the left of § 87(2)(b) vehicle with a steady flow of traffic. There does not appear to be any room for § 87(2)(b) to go around Sgt. Maric at this point. At 10:31:09, Sgt. Maric walks to § 87(2)(b) driver's side door, possibly providing enough room for § 87(2)(b) to move his vehicle. At 10:31:36, Sgt. Maric opens § 87(2)(b) driver's side door. At 10:31:40, Sgt. Maric's right arm enters § 87(2)(b) vehicle. His left arm is not visible. Sgt. Maric moves his arm backwards once and then removes his hand from the vehicle. It is at this point that some members of the crowd turn around towards § 87(2)(b) vehicle to see what was happening.

There is no BWC for this portion of this incident.

On February 15, 2020, at approximately 10:30 p.m., § 87(2)(b) (**Board Review 1**) drove alone in his 2017 Chevy Suburban SUV towards West 45th Street on 7th Avenue when the traffic lanes changed from two lanes into three lanes, adding on a right turning lane. When § 87(2)(b) merged into the third turning lane to make a right onto West 45th Street, he saw Sgt. Maric standing in the middle of the lane facing East, away from § 87(2)(b). After seeing Sgt. Maric, § 87(2)(b) stopped his vehicle outside of 1535 Broadway in Manhattan, which was outside of the Levi's store and Sephora store. § 87(2)(b) flashed his high beams at Sgt. Maric and asked from inside of the car, "Can I go?" Sgt. Maric then approached the driver's side window that § 87(2)(b) had rolled down and asked, "What do you want? Why are you flashing your lights?" § 87(2)(b) asked Sgt. Maric, "You okay, Officer? Can I go?"

Sgt. Maric (**Board Review 2**) was initially interviewed on January 8, 2021. He stated that on February 15, 2020, he was addressing traffic conditions along 7th Avenue and later went to stand alone in the turning lane in front of 1535 Broadway in Manhattan when he saw § 87(2)(b) vehicle approaching. § 87(2)(b) brought his vehicle within six feet of Sgt. Maric and flashed his bright lights at him while yelling, "Fuck is your problem? Fuck are you doing?" Sgt. Maric instructed § 87(2)(b) to move along several times and gestured with his arm extended away from his body. There was enough room for § 87(2)(b) to move around Sgt. Maric and get into the lane that he needed to be in. Sgt. Maric was not restricting the movement of § 87(2)(b) vehicle in any way. At this point, § 87(2)(b) stopped in between two lanes: one which was going straight and one that formed into a turning lane. While Sgt. Maric could not recall exactly what was said during that conversation, he did recall § 87(2)(b) ask Sgt. Maric why he was in the street and "what the fuck [Sgt. Maric was] doing." Sgt. Maric did not know which gearshift § 87(2)(b) vehicle was in at this time. Since § 87(2)(b) was not moving his vehicle, Sgt. Maric then went to the driver's side of § 87(2)(b) vehicle to see what the problem was. Sgt. Maric did not recall how the driver's side door opened, but recalled the door being open.

Sgt. Maric (**Board Review 17**) was interviewed again on February 4, 2022. He did not wish to make any amendments to his previous testimony. Sgt. Maric was shown TARU footage, which was received after his first interview. At 10:30:22 p.m., he recognized the location to be 1535 Broadway, specifically the pedestrian plaza. He recognized himself in the turning lane, closest to the Levi's store. Sgt. Maric reviewed the footage between 10:30:22 p.m. and 10:31:45 p.m. Sgt.

Maric confirmed that he recognized the events depicted in the video to be from this incident; however, they did not refresh any additional recollection of what happened. Sgt. Maric stated that based on the video, he appeared to be in the center of the turning lane when he first observed § 87(2)(b) vehicle. Based on his recollection, he was closer to the wall that separated the turning lane from the pedestrian plaza. After observing § 87(2)(b) vehicle, Sgt. Maric did move around. He stated that while it does not seem like it from the vantage point of the video, § 87(2)(b) did have room to go around Sgt. Maric, with at least a half of a car length or a full car length. Sgt. Maric admitted that § 87(2)(b) vehicle was larger than other cars. Sgt. Maric stated that he had been moving around that area throughout the course of the night and other vehicles were able to move around him. At the beginning of this incident, he just happened to be in the turning lane. Further, after viewing the video footage, it appeared that Sgt. Maric opened § 87(2)(b) vehicle door. Sgt. Maric did not recall why he opened § 87(2)(b) door. He stated that he would normally ask someone for their identification. Based on the previous interview, Sgt. Maric stated that as § 87(2)(b) was acting irate, Sgt. Maric wanted to see if § 87(2)(b) was alright and investigate further if the incident was going to be a traffic stop or if § 87(2)(b) was an emotionally disturbed person. § 87(2)(b) stated that he stopped his vehicle because Sgt. Maric was in the middle of the street. When Sgt. Maric came to § 87(2)(b) window, § 87(2)(b) asked Sgt. Maric if he was alright and if § 87(2)(b) could go. Sgt. Maric stated that he never stopped § 87(2)(b) vehicle, rather § 87(2)(b) was between two lanes and Sgt. Maric and signaled § 87(2)(b) to move around Sgt. Maric to get to where he needed to go as there was enough room for § 87(2)(b) to move. Further, Sgt. Maric opened § 87(2)(b) driver's side door but did not recall why. There is TARU footage of this incident, that shows that § 87(2)(b) was in the right most turning lane, not between two lanes, and Sgt. Maric stood in the middle of the lane that § 87(2)(b) was in. § 87(2)(b) stopped his vehicle some distance away from Sgt. Maric, at which point Sgt. Maric moved and went to the driver's side window. He then opened the driver's side door within approximately 30 seconds of reaching the window.

§ 87(2)(g)
it is recommended that Allegation A be closed as unsubstantiated.

Allegation (B) Discourtesy: On February 15, 2020, in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric spoke discourteously to § 87(2)(b)

Allegation (C) Abuse of Authority: On February 15, 2020, in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (D) Force: On February 15, 2020, in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric used physical force (slapped) against § 87(2)(b)

Allegation (E) Abuse of Authority: On February 15, 2020, in front of 1535 Broadway in Manhattan, Sergeant Sasa Maric damaged § 87(2)(b) property.

Sgt. Maric did not activate his BWC during this portion of the incident. PO Cosenza's BWC (Board Review 10), located in IA 65, captured a portion of this incident. All timestamps are those based on the media player. Between 00:06- 01:10, § 87(2)(b) stated that he needed to know "Who got [him] and who slapped [him]." Sgt. Maric did not recall hearing § 87(2)(b) making these statements during the incident or having any additional physical interaction with § 87(2)(b). PO Cosenza states, "just so you know, you are being recorded. He is standing right there. He'd be happy to tell you his name and his shield number." At the 01:10 mark, § 87(2)(b) tells PO Cosenza, "I need to see him. Do not let him go. This guy slapped me." PO Cosenza immediately responds stating that, "he is the supervisor. He is not leaving."

After § 87(2)(b) (Board Review 1) asked Sgt. Maric if he was okay, Sgt. Maric told § 87(2)(b)

§ 87(2)(b) “It’s not your fucking business if I am okay or not.” After hearing this statement, § 87(2)(b) felt uncomfortable because Sgt. Maric was so angry, and he felt as if Sgt. Maric might punch him. § 87(2)(b) went to touch his phone, which was mounted on the left side of his steering wheel, close to the window, to record this interaction. § 87(2)(b) told Sgt. Maric that he is opening his camera to get Sgt. Maric’s name. Sgt. Maric then reached into § 87(2)(b) vehicle with both hands. With his left hand, Sgt. Maric tried to open § 87(2)(b) vehicle door and with his right hand, he slapped the phone from left to right, out of § 87(2)(b) hand, causing the phone to hit § 87(2)(b) windshield and for the phone screen to crack. Sgt. Maric then tapped the body camera on his chest a few times and stated, “I got my camera on. You don’t touch your phone. You don’t do anything. I’ve got my camera on.” As Sgt. Maric tried to open § 87(2)(b) vehicle door he told § 87(2)(b) to get out of the vehicle about ten times, without providing a reason why. § 87(2)(b) did not understand why Sgt. Maric was telling him to exit his vehicle. § 87(2)(b) did not note what, if any statements, he made to Sgt. Maric while he was instructed to get out of his vehicle. As § 87(2)(b) vehicle’s gearshift was still in drive, his door did not open. § 87(2)(b) then adjusted his gearshift and placed his vehicle in park. As § 87(2)(b) moved his seatbelt, Sgt. Maric had already opened § 87(2)(b) driver’s side door.

When § 87(2)(b) arrived at the CCRB, he showed his phone’s cracked screen, which resulted from it hitting the windshield after Sgt. Maric allegedly slapped the phone out of § 87(2)(b) hand. § 87(2)(b) observed these damages on February 15, 2020, after the first incident concluded. The undersigned took four photos of these damages at the CCRB (**Board Reviews 6 – 9**).

(Board Review 2) When Sgt. Maric (**Board Review 2**) went to the driver’s side door of § 87(2)(b) vehicle, he saw that § 87(2)(b) vehicle door appeared to be open enough for § 87(2)(b) to exit. Sgt. Maric did not recall if whether he opened the door or if § 87(2)(b) did. § 87(2)(b) spoke in an elevated voice and continued to curse. § 87(2)(b) stated that he wanted to record and put the phone near Sgt. Maric’s face. Sgt. Maric was unsure if § 87(2)(b) was going to record the interaction or strike Sgt. Maric with his phone. Sgt. Maric took the phone out of § 87(2)(b) hand and placed it on the dashboard and then asked § 87(2)(b) for his driver’s license as he wanted to know who § 87(2)(b) was. Sgt. Maric never slapped or hit the phone out of § 87(2)(b) hand and was unsure if § 87(2)(b) hand was inside or outside of his vehicle when Sgt. Maric removed the phone from it. He was not sure if he ever reached inside of § 87(2)(b) vehicle but said that it was possible. § 87(2)(b) was creating a scene and was using profane language. Given that there are usually civilians around this area and there was a plaza behind where the interaction with § 87(2)(b) was taking place, a crowd had been begun to gather. Sgt. Maric could not estimate how many people in the crowd had gathered. § 87(2)(b) could have been arrested for obstructing traffic, not listening to orders, using profane language, and causing onlookers to gather. Sgt. Maric did not stop § 87(2)(b) vehicle. Rather, § 87(2)(b) had stopped himself. Sgt. Maric stated that it is possible that he might have told § 87(2)(b) “It’s not your fucking business if I’m okay or not” as he was frustrated having told § 87(2)(b) to move along a few times. Sgt. Maric did not recall if he ever told § 87(2)(b) “I’m the fucking supervisor.” Sgt. Maric did not believe he ever searched § 87(2)(b) vehicle or manipulated the vehicle in any way. Sgt. Maric never slapped § 87(2)(b) phone out of his hand. Sgt. Maric did not observe § 87(2)(b) property being damaged, specifically his cell phone screen. Sgt. Maric viewed four photographs § 87(2)(b) phone, showing damages to the screen (**Board Reviews 6 – 9**). The damages to § 87(2)(b) phone screen did not look familiar to Sgt. Maric. He did not observe any of the shown damages during the incident, nor did he ever learn how those damages came to be. No action was taken by Sgt. Maric or any other officer that may have caused the noted damages to § 87(2)(b) phone.

§ 87(2)(b) alleged that Sgt. Maric stated, “It’s not your fucking business if I’m okay or not” or “I’m the fucking supervisor.” Sgt. Maric did not recall if he made those statements to § 87(2)(b). There is no video for this portion of the incident § 87(2)(g).

§ 87(2)(g) it is recommended that **Allegation B** be closed as **unsubstantiated**.

§ 87(2)(b) stated that when he informed Sgt. Maric that he was opening his camera to get Sgt. Maric's name, Sgt. Maric then placed both hands inside of his vehicle, tried to open § 87(2)(b) vehicle door with his right hand and slapped the phone away from § 87(2)(b) with his left hand. Sgt. Maric did not recall whether he reached inside of § 87(2)(b) vehicle but stated that it was possible. TARU footage does show at least one of Sgt. Maric's arms enter § 87(2)(b) vehicle. § 87(2)(g)

§ 87(2)(b) It is recommended that **Allegation C** be closed as **unsubstantiated**.

Finally, § 87(2)(b) alleged that Sgt. Maric slapped § 87(2)(b) phone out of his hand, causing the phone to hit the windshield and cracking the screen. Sgt. Maric testified to taking the phone out of § 87(2)(b) hand and placing it on the dashboard as he was not sure whether § 87(2)(b) was going to use the phone to record the interaction or strike Sgt. Maric. He denied slapping the phone out of § 87(2)(b) hands or observing any damage on the phone. While there is BWC of § 87(2)(b) later saying that he needs to know who slapped him, there is no evidence capturing this allegation, nor is there any other testimony for this portion of the incident as Sgt. Maric and § 87(2)(b) were not with any other witnesses. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations D and E** be closed as **unsubstantiated**.

Allegation (F) Force: On February 15, 2020, at 1535 Broadway in Manhattan, Sergeant Sasa Maric used physical force against § 87(2)(b)

Allegation (G) Force: On February 15, 2020, at 1535 Broadway in Manhattan, Sergeant Sasa Maric used physical force against § 87(2)(b)

PO Cosenza's BWC, located in IA 65 of the digital case file (**Board Review 10**) captured an action and audio related to these allegations. The video opens with § 87(2)(b) driver's side vehicle door open, § 87(2)(b) in the vehicle, and Sgt. Maric is standing at the door. Between 00:02 and 00:06, the Sgt. Maric appears to reach his right hand in to § 87(2)(b) vehicle and has his hand on § 87(2)(b) upper body or collar area. When Sgt. Maric yanks his hand back, § 87(2)(b) gets up out of his seat with his hands up. The audio starts at the 01:01 mark where PO Cosenza asks for § 87(2)(b) identification, and § 87(2)(b) states to PO Cosenza, "I need to know who got me, who slapped me." PO Cosenza states, "just so you know, you are being recorded. He is standing right there. He'd be happy to tell you his name and his shield number." At the 01:10 mark, § 87(2)(b) tells PO Cosenza, "I need to see him. Do not let him go. This guy slapped me." PO Cosenza immediately responds stating that, "he is the supervisor. He is not leaving."

According to § 87(2)(b) (**Board Review 1**), after Sgt. Maric had opened the vehicle door, he grabbed § 87(2)(b) from the collar of his shirt and his neck skin area. § 87(2)(b) could not recall he ever felt any pressure on the front of his neck near his windpipe area. § 87(2)(b) yelled at Sgt. Maric at least three times, "Don't touch me!" Because § 87(2)(b) still had his seatbelt on, he could not move, nor did he attempt to move. Sgt. Maric grabbed § 87(2)(b) jacket collar, shirt, and neck skin once again, this time with more force. While grabbing § 87(2)(b) Sgt. Maric punched § 87(2)(b) lower left jaw area about two to three times with a partially closed fist. § 87(2)(b) did not have any injuries, nor did he take any pictures of where he was hit. At this point, PO Cosenza, PO Branche, and PO McHugh heard § 87(2)(b) screams from across the street and made their way to § 87(2)(b) and Sgt. Maric. Once the additional officers arrived, § 87(2)(b) took off his seatbelt and stepped out of his vehicle. He stated that he wished to be silent and wanted someone to call his attorney. Sgt. Maric asked § 87(2)(b) for his identification. § 87(2)(b) then asked Sgt. Maric for a supervisor, to which Sgt. Maric responded, "I'm the fucking supervisor," and then showed § 87(2)(b) something on his shoulder that signified his supervisory status. § 87(2)(b) then stated that he was not going to speak or do anything.

Sgt. Maric (**Board Review 2**) was unsure how long he was interacting with § 87(2)(b) for, but shortly after, three officers arrived including PO Cosenza and PO Branche. The additional officers came after they saw Sgt. Maric interacting with § 87(2)(b) and seeing § 87(2)(b) door open. Sgt. Maric grabbed § 87(2)(b) arm and took him out of his vehicle. Sgt. Maric did not recall if he issued § 87(2)(b) any commands before escorting him out of the vehicle, nor did he recall whether § 87(2)(b) arm was inside or outside of his vehicle when Sgt. Maric grabbed it. Sgt. Maric did not recall § 87(2)(b) offering any physical resistance when he was escorted out. Other than using § 87(2)(b) arm to “guide” him out of the vehicle, Sgt. Maric did not use any other force against § 87(2)(b). Sgt. Maric later stated that did not recall grabbing § 87(2)(b) shirt or jacket collar area. He never punched § 87(2)(b) or his lower left jaw area. Sgt. Maric stated that because § 87(2)(b) did not provide his identification when asked and because the circumstances were escalating to a potential arrest for obstructing traffic, not listening to orders, using profane language, and causing onlookers to gather, § 87(2)(b) was taken out of his vehicle. Once outside of his vehicle, he would be easier to arrest if needed. Sgt. Maric reviewed PO Cosenza’s BWC. Between the 00:00-01:10, Sgt. Maric agreed that he saw his hand near § 87(2)(b) collar in the video but did not independently recall that during the incident. Further, he heard § 87(2)(b) stated on the BWC that he needed to know “Who got [him] and who slapped [him].” Sgt. Maric did not recall hearing § 87(2)(b) making these statements during the incident or having any additional physical interaction with § 87(2)(b).

PO Cosenza (**Board Review 3**) did not recall seeing Sgt. Maric physically interact with § 87(2)(b).

PO Branche (**Board Review 4**) stated that he heard § 87(2)(b) state in PO Cosenza’s BWC that he needed to know “Who got [him] and who slapped [him],” but he did not independently recall hearing § 87(2)(b) making these statements during the incident.

According to PO Cosenza’s BWC, which does not capture the entirety of these allegations, it is apparent that Sgt. Maric hand was near § 87(2)(b) collar area of his clothing just before § 87(2)(b) exited his vehicle § 87(2)(g).

§ 87(2)(b) The BWC footage does not show Sgt. Maric grab § 87(2)(b) collar of his clothing and neck skin, nor does it show Sgt. Maric punch § 87(2)(b) § 87(2)(g). § 87(2)(b) it is recommended that **Allegations F and G** be closed as **unsubstantiated**.

Allegation (H) Discourtesy: On February 15, 2020, in front of 1535 Broadway in Manhattan, Police Officer Daniel Cosenza spoke discourteously to § 87(2)(b)

Allegation (I) Offensive Language: On February 15, 2020, at 1535 Broadway in Manhattan, Police Officer Daniel Cosenza made offensive remarks based on perceived mental health to § 87(2)(b)

PO Cosenza’s BWC, located in IA 65 of the digital case file (**Board Review 10**). At 01:01, PO Cosenza asks for § 87(2)(b) identification, and § 87(2)(b) states to PO Cosenza, “I need to know who got me, who slapped me.” PO Cosenza states, “just so you know, you are being recorded. He is standing right there. He’d be happy to tell you his name and his shield number.” At the 01:10 mark, § 87(2)(b) tells PO Cosenza, “I need to see him. Do not let him go. This guy slapped me.” PO Cosenza immediately responds stating that, “he is the supervisor. He is not leaving.” At 01:14, § 87(2)(b) tells PO Cosenza, “Sir, he took my phone. He took my camera, for what?” PO Cosenza tells § 87(2)(b) that he is speaking to him like an adult. At 01:23, § 87(2)(b) repeats, “Like an adult. This guy slapped me. I’m in New York. This is the law; nobody can touch

me for any reason." PO Cosenza asked § 87(2)(b) if he did anything to disrespect him. § 87(2)(b) stated yes because he let Sgt. Maric go even though "he slapped me. He got me from my jacket and ...outside." At 01:37, PO Cosenza told § 87(2)(b) "You sound insane right now. Did I do anything to disrespect you personally? Me?" § 87(2)(b) responded no. At 01:41, PO Cosenza asks § 87(2)(b) multiple times for his identification so that he can write § 87(2)(b) a summons for disorderly conduct. § 87(2)(b) spoke in an elevated voice reiterating several times that he was inside of his vehicle and was taken out. At 02:05, § 87(2)(b) stated "No ID, take me please," to which PO Cosenza responded that he would take § 87(2)(b) identification from him. § 87(2)(b) stated, "No ID. Do not touch me please." PO Cosenza reminded § 87(2)(b) that he told PO Cosenza to arrest him. § 87(2)(b) stated, "No nothing. Just take me to fucking jail. I'm not dealing with you tonight." At 02:18, PO Cosenza stated to § 87(2)(b) "I'm not going to take you to jail, but I am going to detain you in handcuffs right now because you are acting crazy."

§ 87(2)(b) (Board Review 1) did not raise this allegation.

PO Cosenza (Board Review 3) told § 87(2)(b) that he was acting crazy and sounded insane, but he was not referring to § 87(2)(b) perceived mental health by this statement. He told § 87(2)(b) that he was acting crazy and sounded insane because § 87(2)(b) was shouting and acting in a boisterous and combative manner by flailing his arms, motioning his hands together in front of him and crossing his arms at the wrist for the officers to place him under arrest. At one point, without being prompted to do so, § 87(2)(b) turned around with his back to PO Cosenza, and put his hands behind his back. Other than this, there were no additional observations PO Cosenza made regarding § 87(2)(b) behavior.

§ 87(2)(b) was issued Summons § 87(2)(b) (Board Review 18), which was issued by PO Cosenza for acting irrationally, using profane language in public, causing onlookers to become alarmed and annoyed, and causing a crowd to form.

Officers should treat every citizen with courtesy, professionalism, and respect as per NYPD Patrol Guide Procedure 200-02 (Board Review 24).

Officers are prohibited from using disrespectful remarks regarding ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability NYPD Patrol Guide Procedure 203-10 (Board Review 13).

The use of discourteous language by an officer may be justified when attempting to gain compliance with commands given while attempting to maintain order during a stressful street encounter NYPD Disciplinary Case #79627/04 (Board Review 23).

According to the patrol guide, using profanity when speaking to civilians is not permitted, and NYPD Disciplinary Case #79627/04 note that there is an exception to this rule in the presence of exigent circumstances. § 87(2)(b) was already arrested and in police custody within the station house, § 87(2)(g)

§ 87(2)(g) This allegation was captured on BWC, and PO Cosenza admitted to using the statements, "you sound insane right now" and "...you are acting crazy."

§ 87(2)(g)

§ 87(2)(g) It is recommended that **Allegations H and I** be closed as **substantiated**.

Allegation (J) Abuse of Authority: On February 15, 2020, at 1535 Broadway in Manhattan, Sergeant Sasa Maric refused to provide his name to § 87(2)(b)

This allegation is not captured on video footage.

§ 87(2)(b) (Board Review 1) stated that after he was handcuffed, he was taken to the back of his SUV for about 15 to 20 minutes. Sgt. Maric stood about 30 feet away from § 87(2)(b) when § 87(2)(b) asked for Sgt. Maric's name at least 10 times. Sgt. Maric did not provide his name.

Sgt. Maric (**Board Review 2**) testified that at some point during the incident, § 87(2)(b) asked for Sgt. Maric's identifying information, but he was not sure exactly when that was. Sgt. Maric stated that he showed § 87(2)(b) his name and shield, and later stated that it was there for § 87(2)(b) to look at. Sgt. Maric did not recall any steps he may have taken to show § 87(2)(b) his identifying information. Sgt. Maric believed that § 87(2)(b) asked for his name, and it was either on the summons or another officer provided it to him. Additionally, at some point, possibly towards the end of the interaction, Sgt. Maric verbally told § 87(2)(b) his name.

PO Cosenza (**Board Review 3**) stated that § 87(2)(b) asked PO Cosenza for Sgt. Maric's name, and he had written Sgt. Maric's name and shield number on the summons that was issued to § 87(2)(b) later. He did not observe § 87(2)(b) ask Sgt. Maric for his name. Sgt. Maric stood 15 to 20 feet away from PO Cosenza and § 87(2)(b).

§ 87(2)(g)
It is recommended that **Allegation J** be closed as **unsubstantiated**.

Allegation (K) Abuse of Authority: On February 15, 2020, at the Midtown South Precinct stationhouse, an officer did not process § 87(2)(b) complaint regarding an officer.

There is no video footage capturing this allegation.

After § 87(2)(b) (**Board Review 1**) was issued a summons, he was released from the handcuffs. § 87(2)(b) returned to his vehicle and left the location. About 15 minutes later, he went to the Midtown South Precinct station house located on West 35th Street between 7th Avenue and 8th Avenue in Manhattan. After entering the stationhouse, on the left side, there were computers where an unidentified Black male officer dressed in uniform sat. § 87(2)(b) spoke to this officer and expressed that he wanted to report an issue with Sgt. Maric. The officer stated that § 87(2)(b) can make that complaint online. § 87(2)(b) took the information and left; he did not specify what information he received. § 87(2)(b) stated that this unidentified officer did not refuse to take § 87(2)(b) complaint.

Based on the timeline provided by § 87(2)(b) during this interview, if the incident with Sgt. Maric and PO Cosenza started at 10:30 p.m. and lasted a maximum of 20 minutes, it would have ended at approximately 10:50 p.m. § 87(2)(b) stated that he went to the Midtown South Precinct station house about 15 minutes after the first incident ended. If the first incident ended at 10:50 p.m., then § 87(2)(b) would have gone to the station house at approximately 11:05 p.m. As it is possible that § 87(2)(b) may have gone to the station house close to a Tour change, the undersigned requested Roll Call from the Midtown South Precinct for both Tour 3 on February 15, 2020 (**Board Review 14**) and Tour 1 on February 16, 2020 (**Board Review 15**). Roll Call from Tour 3 on February 15, 2020 (**Board Review 14**) indicates that PO Ryan McCarthy was assigned as the telephone switchboard (T/S) operator and PO Marc Canicatti was assigned as stationhouse security. Both officers are white males, which ruled them out as a potential subject officer for this allegation. Roll Call from Tour 1 on February 16, 2020 (**Board Review 15**) indicates that PO Edward Milmore was assigned as the cell attendant, PO Edward Ahearne was assigned as station house security, and PO James McNamee was assigned as the T/S operator. All three of these officers are white males, which ruled them out as a potential subject officer for this allegation.

§ 87(2)(g)
it is recommended that **Allegation K** be closed as **officer unidentified**.

Allegation (L) Abuse of Authority: On February 16, 2020, at the Midtown South Precinct stationhouse, Lieutenant Robert Crespo did not process § 87(2)(b) complaint regarding an officer.

There is no video footage capturing this allegation.

§ 87(2)(b) (**Board Review 1**) returned to the Midtown South Precinct station house

around 3 a.m. on February 16, 2020, and spoke with a male officer who, sat behind a computer. § 87(2)(b) provided the following description of this officer: he stood 6'0" tall and wore a white shirt with a black tie. § 87(2)(b) recalled seeing this officer at the stationhouse earlier in the evening. The officer recognized seeing § 87(2)(b) earlier as well. § 87(2)(b) told this officer that he wanted to make the report regarding Sgt. Maric in person. While this officer spoke in a friendly manner to § 87(2)(b) and stated that he could take the complaint, he warned § 87(2)(b) that the complaint may take three weeks to process. The officer stated that § 87(2)(b) may have faster results if he called to make the complaint instead. § 87(2)(b) then left the stationhouse and called to file the complaint; he did not clarify whether he was provided a number to call.

Roll Call from Tour 1 on February 16, 2020 (**Board Review 15**) indicates that Lt. Robert Crespo was the only member of service at the Midtown South Precinct on duty at the time, who held the rank of Lieutenant or higher. He worked from 11:00 p.m. to 7:45 a.m. as the platoon commander, placing him on duty during both on § 87(2)(b) visits to the stationhouse.

Lt. Crespo (**Board Review 16**) did not have an independent recollection of this incident. He was provided with details of the first and second incident, none of which refreshed his recollection. Lt. Crespo was shown a photo of § 87(2)(b) and he stated that § 87(2)(b) did not look familiar to him. When asked where inside the stationhouse computers are located, Lt. Crespo stated that when an individual first walks into the stationhouse, if they turn to the left, a desk officer will be sitting there, and a computer would be located there as well. Lt. Crespo stated that he was not at the desk around 11:05 p.m. on February 15, 2020. Lt. Crespo was provided with further details of the complaint, which included § 87(2)(b) alleging that he spoke with a Black male officer at the stationhouse and requested to file a complaint against Sgt. Maric. He was also informed that § 87(2)(b) subsequently returned at approximately 3 a.m. on February 16, 2020, and he spoke with an officer in a white shirt and told the officer that he wished to file a complaint in person against Sgt. Maric. None of these details refreshed Lt. Crespo's memory, and he did not recall interacting with § 87(2)(b).

Sgt. Maric (**Board Review 2**) recalled returning to the Midtown South Precinct station house at the end of tour around 2:17 p.m. on February 16, 2020. As he was going to change his clothes, Sgt. Maric recalled seeing § 87(2)(b) at the stationhouse possibly speaking to another officer Sgt. Maric was unable to identify a member of service who stands 6'0" tall and may have been dressed in a white shirt and black tie. Sgt. Maric did not observe § 87(2)(b) speaking to an officer regarding filing a complaint against another officer. Sgt. Maric did not observe any officer refuse to file § 87(2)(b) complaint.

§ 87(2)(g)

It is therefore recommended that **Allegation L** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Lt. Crespo has been a member of service for 18 years and has been a subject in two other CCRB complaints and four other allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Maric has been a member of service for 17 years and has been a subject in 8 other CCRB complaints and 16 other allegations, none of which were substantiated. § 87(2)(g)
- PO Cosenza has been a member of service for 10 years and has been a subject in two other CCRB complaints and five other allegations, none of which were substantiated. § 87(2)(g)

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of December 10, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this to complaint (**Board Review 20 – 22**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 11

Investigator: Tahreem Khan Inv. Tahreem Khan February 14, 2022
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 02/14/22
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date